



File No.: EXP202300489

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On June 23, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against LA VANGUARDIA EDICIONES, S.L. (hereinafter, the respondent), through the Agreement that is transcribed:

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File No.: EXP202300489 (PS/00132/2023)

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following:

BACKGROUND

FIRST: On 11/25/22, Mr. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection. The complaint was directed against the entity LA VANGUARDIA EDICIONES, S.L., with CIF: B61475257, owner of the website <https://www.lavanguardia.com> (hereinafter, the complained entity), for the alleged violation of data protection regulations: Regulation (EU) 2016/679 of the European Parliament and of the Council, of 04/27/16, concerning the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (GDPR) and Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), and against Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

The grounds for the complaint are that “just by entering the website, without browsing, they already attempt to install cookies on your device, and after rejecting the cookies, the website continues to attempt to install cookies.”

SECOND: On 01/17/23, in accordance with the awareness-raising function defined for control authorities in Article 57.1.d) of the GDPR and the supervisory functions corresponding to the General Subdirectorate of Data Inspection under Article 27.1.a) of Royal Decree 389/2021, of June 1, which approves the Statute of the Spanish Agency for Data Protection, the complained entity was informed that the website under its ownership <https://www.lavanguardia.com/> could be violating the applicable sectoral regulations regarding the use of devices for storing and retrieving data on the end users' devices (cookies), established by the LSSI, warning that, in the event of not adopting the measures that, if applicable, were necessary to adapt the aforementioned website to the legally established provisions, it would incur in respective violations of data protection regulations and the LSSI, which could lead to the initiation of the corresponding investigative and sanctioning proceedings.

THIRD: On 03/03/23, a second written communication was received from the complainant, in which the following is indicated:

“I have been able to verify today, March 2, 2023, that just by entering <https://www.lavanguardia.com/> cookies are installed that do not disappear even if you reject the cookies, I attach screenshots (...).”

FOURTH: On 06/16/23, this Agency accessed the website <https://www.lavanguardia.com/>, confirming the following characteristics regarding its “Cookie Policy”:

1st.- Regarding the use of cookies before the user gives their consent:

Upon entering the website for the first time, after clearing the terminal equipment of browsing history and cookies, without accepting new cookies or taking any action on the website, it has been verified that cookies that are not technical or necessary are used, with the following characteristics:

Performance cookies

(3): These cookies allow us to quantify the number of visits and sources of traffic to evaluate the performance of the site. They help us understand which pages are the most or least visited and how visitors navigate through the site.

cookies

Domain

Description

_ga

.lavanguardia.com

This cookie name is associated with Google Universal Analytics, which is a major update of Google's most widely used analytics service. This cookie is used to distinguish unique users by assigning a randomly generated number as a client identifier. It is included in each page request on a site and is used to calculate visitor, session, and campaign data for site analytics reports.

_gid

.lavanguardia.com

This cookie is set by Google

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Cookies

Domain

Description

Analytics. Stores and updates a unique value for each visited page and is used to count and track page views.

_ga_H6

QBS-

GRBJ2

.lavanguardia.com

Google Analytics uses this cookie to maintain the session state.

Targeting Cookies

(1):

include social media cookies that are placed on sites to track users across the web and provide them with advertisements.

Cookies

Domain

Description

_gcl_au

.lavanguardia.com

Used by Google AdSense to experiment with the efficiency of advertising on the websites that use its services.

2.- About the cookie information banner on the first layer:

When entering the website for the first time, after clearing the terminal equipment of browsing history and cookies, without taking any action on the webpage, a cookie information banner appears at the bottom of the main page with the following message:

We hereby inform you of the use we make of the data we collect while you browse our pages. You can change your preferences at any time by accessing the link to the Privacy Area found at the bottom of our main page.

With your consent, we and our partners use cookies or similar technologies to store, access, and process personal data such as your visit to this website, IP addresses, and cookie identifiers. Some partners do not require your consent to process your data and rely on their legitimate business interest. You can withdraw your consent or refuse the processing of data based on your legitimate interest at any time by clicking on "More information" in our Privacy Policy for this website. See our partners

We and our partners carry out the following data processing:

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Store or access information on a device, Personalized ads and content, Measurement of ads and content, Audience insights and product development, Precise geolocation data and identification through device characteristics, Purposes specific to La Vanguardia, Use of technical or preference cookies

<>

<>

If you access the second layer through the <> link, the website displays a control panel where it is verified that the cookie groups are not pre-checked in any of the options.

Privacy Area

Here you can set your preferences and choose how you want us and other selected companies to use your data by installing cookies or using similar technologies. Rejecting the installation of cookies may result in certain services not functioning correctly. For more information about cookies, you can consult our Cookie Policy, and for information about the personal data processing we carry out, you can consult our Privacy Policy.

Below, we present the purposes for which data is processed on our portal. You can accept or reject each of them, and your decision will be binding for all companies that process data on our portal. You can also select specific companies to which you want to allow or deny the processing of your data by accessing the button See our partners.

Skip to "Accept all"

YOU ALLOW

+ Store or access information on a device

Reject - Accept

+ Select basic ads

Reject - Accept

+ Create a personalized advertising profile

Reject - Accept

+ Select personalized ads

Reject - Accept

+ Create a profile for content personalization

Reject - Accept

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+ Select personalized content

Reject - Accept

+ Measure ad performance

Reject - Accept

+ Measure content performance

Reject - Accept

+ Use market research to generate audience insights

Reject - Accept

+ Develop and improve products

Reject - Accept

+ Use precise geolocation data

Reject - Accept

+ Purposes specific to La Vanguardia

Reject - Accept

+ Use of technical or preference cookies

MANDATORY

If you give your consent for the above purposes, you also allow this website and its partners to process the following data: Cross-check and combine offline data sources, Ensure security, prevent fraud, and debug errors, Receive and use device characteristics sent automatically for identification, Technically serve ads or content, and Link different devices

<>

<>

<>

In this Control Panel, the following options can be performed:

a).- If you choose to reject all cookies by clicking on the <> option, it is verified how the website continues to use the detected "non-technical or necessary" cookies at the beginning of the visit.

It is also observed that, when all cookies are rejected, the website starts to use third-party cookies (from Google) that are not technical or necessary:

Cookies

Provider

1P_JAR

.google.com

/

NID

.google.com

/

AEC

.google.com

/

SOCS

.google.com

/

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CONSENT

.google.com

/

b).- If you choose to reject certain groups of cookies by clicking on the "reject" option and accept the others by clicking "accept," it is noted that by clicking "save" for the desired settings, the website continues to use the same cookies detected at the beginning.

c).- If you wish to obtain information about the partners of the website owner, by clicking on the "view partners" option, a page is displayed listing more than 100 partners or companies of the website owner, with the possibility to "block" or "authorize" all at once or to do so one by one.

You can configure your consent preferences separately for each of the partners mentioned below.

Click on the name of a partner to get more information about what they do, what data they collect, and how they use it.

Skip to "Save"

All partners

<>

<>

+1000mercis (Numberly) IAB TCF

Block

Authorize

+1plusX AG IAB TCF

Block

Authorize

+2KDirect, Inc. (dba iPromote) IAB TCF

Block

Authorize

+33Across IAB TCF

Block

Authorize

....

3º.- Regarding the information provided in the "Cookie Policy":

If you wish to access the information available in the "Cookie Policy," through the link at the bottom of the main page, the website redirects the user to a new page

<https://www.lavanguardia.com/cookies-privacy-LV-popup.html>, where information is provided about: what cookies are; the cookies used on this website; or how to deactivate or delete cookies through the browser installed on the terminal device.

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4º.- Regarding how to withdraw consent for the use of cookies after having offered it:

It is noted that there is no mechanism that allows returning to the cookie management control panel to modify the consent given, once the use of cookies has been permitted and web browsing has begun.

LEGAL GROUNDS

I.-

Competence:

The Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure, in accordance with the provisions of Article 43.1, second paragraph, of the LSSI Law.

II.-

Regarding the Cookie Policy of the website

a).- Regarding the installation of cookies on the terminal device prior to consent:

Article 22.2 of the LSSI establishes that users must be provided with clear and complete information about the use of data storage and retrieval devices and, in particular, about the purposes of data processing.

This information must be provided in accordance with the provisions of the GDPR.

Therefore, when the use of a cookie involves processing that allows the identification of the user, the data controllers must ensure compliance with the requirements established by data protection regulations.

However, it is necessary to point out that cookies necessary for the intercommunication of terminals and the network and those that provide a service expressly requested by the user are exempt from compliance with the obligations established in Article 22.2 of the LSSI.

In this regard, the GT29, in its Opinion 4/2012, interpreted that among the cookies exempted would be the "User Input Cookies" (those used to fill out forms, or for managing a shopping cart); authentication or user identification cookies (session); user security cookies (those used to detect erroneous and repeated attempts to connect to a website); multimedia player session cookies; session cookies for load balancing; user interface personalization cookies; and some plug-in cookies for sharing social content.

These cookies would be excluded from the scope of Article 22.2 of the LSSI, and therefore, it would not be necessary to inform or obtain consent for their use. Conversely, it will be necessary to inform and obtain the user's prior consent before using any other type of cookies, whether first-party or

third-party, session or persistent.

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In the verification carried out by this Agency on the reported website, it was confirmed that, upon entering the main page and without taking any action on it or accepting cookies, the following non-essential cookies were being used:

Upon entering the website for the first time, without accepting cookies or taking any action on the page, it has been verified that cookies that are not technical or necessary are being used:

- Three performance cookies: `_ga`; `_gid`; and `_ga_H6QBSGRBJ2`

- One targeting cookie: `_gcl_au`

b).- Regarding consent for the installation of cookies on the terminal equipment:

For the use of non-exempt cookies, it is necessary to obtain the user's consent expressly. This consent can be obtained by clicking on "accept" or inferring it from an unequivocal action taken by the user that indicates that consent has been unequivocally given. Therefore, mere inactivity of the user, scrolling, or navigating the website will not be considered a clear affirmative action in any circumstance and will not imply the granting of consent by itself. Likewise, access to the second layer if the information is presented in layers, as well as the navigation necessary for the user to manage their preferences regarding cookies in the control panel, is also not considered an active behavior from which acceptance of cookies can be derived.

The existence of "Cookie Walls" is also not permitted, that is, pop-up windows that block content and access to the website, forcing the user to accept the use of cookies in order to access the page and continue browsing without offering the user any alternative that allows them to freely manage their preferences regarding the use of cookies.

If the option is to go to a second layer or cookie control panel, the link must take the user directly to that configuration panel. To facilitate selection, in the panel, in addition to a granular cookie management system, two more buttons may be implemented, one to accept all cookies and another to reject them all. If the user saves their choice without having selected any cookie, it will be understood that they have rejected all cookies. In relation to this second possibility, pre-checked boxes in favor of accepting cookies are not admissible under any circumstances.

If for the configuration of cookies, the website refers to the settings of the browser installed on the terminal equipment, this option could be considered complementary for obtaining consent, but not as the only mechanism. Therefore, if the publisher opts for this option, they must also offer, in any case, a mechanism that allows the rejection of the use of cookies and/or to do so in a granular manner.

On the other hand, the withdrawal of previously granted consent by the user must be possible at any time. To this end, the publisher must provide a mechanism that allows for easy withdrawal of consent at any time.

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moment. It will be considered that this facility exists, for example, when the user has easy and permanent access to the management or configuration system of cookies.

If the editor's cookie management or configuration system does not allow the prevention of the use of third-party cookies once accepted by the user, information will be provided about the tools offered by the browser and third parties, warning that if the user accepts third-party cookies and later wishes to delete them, they must do so from their own browser or the system enabled by third parties for that purpose.

In the case at hand, in the cookie control panel, if the option to NOT allow any of the cookie groups is

chosen, or by clicking on the "reject" option for each of the cookie groups, it is verified that the website continues to use the same cookies detected at the beginning and even starts to use third-party cookies (all of them from Google) without consent: 1P_JAR; NID; AEC; SOCS; CONSENT.

c).- On the withdrawal of consent for the use of cookies once granted.

Users must be able to withdraw the previously granted consent at any time. To this end, the editor must ensure that it provides information to users in its cookie policy on how they can withdraw consent. The user must be able to revoke consent easily. The system offered for withdrawing consent must be as easy as the one used when consent was granted. It will be considered that this facility exists, for example, when the user has easy and permanent access to the management or configuration system of cookies.

In this case, once consent for the use of cookies has been granted through the option available in the initial banner or through consent granted in the control panel, it is verified that the cookies detected at the beginning are installed. However, it is verified that there is no mechanism or permanent access to the control panel that allows the withdrawal of consent after it has been granted.

II.-2

Classification of the possible infringement committed

From the deficiencies detected regarding the cookie policy on the website in question: the use of third-party cookies that are not technical or necessary without the prior consent of the user; the impossibility of rejecting third-party cookies or managing them granularly and the impossibility of withdrawing consent once granted, could imply on the part of the accused the commission of the infringement of Article 22.2 of the LSSI, as it establishes the following:

"Service providers may use data storage and retrieval devices on the terminal equipment of the recipients, provided that they have given their consent after being provided with clear and complete information about their use, in particular, about the purposes of data processing, in accordance with the provisions of Organic Law 15/1999, of December 13, on the protection of personal data.

When technically possible and effective, the recipient's consent to accept data processing may be provided through the appropriate parameters of the browser or other applications.

The above shall not prevent the possible storage or technical access solely for the purpose of transmitting a communication over an electronic communications network or, to the extent strictly necessary, for the provision of an information society service expressly requested by the recipient."

II.-3

Proposal and graduation of the sanction

This infringement is classified as "minor" in Article 38.4 g) of the aforementioned Law, which considers as such: "Using data storage and retrieval devices when the information has not been provided or the consent of the service recipient has not been obtained in the terms required by Article 22.2.", and may be sanctioned with a fine of up to €30,000, in accordance with Article 39 of the aforementioned LSSI. Following the evidence obtained in the preliminary investigation phase, and without prejudice to what results from the instruction, it is considered appropriate to graduate the sanction to be imposed in accordance with the following aggravating criteria, established by Article 40 of the LSSI: The existence of intentionality, a term that must be interpreted as equivalent to the degree of culpability in accordance with the ruling of the National Court of 12/11/07 in Case No. 351/2006, corresponding to the accused entity the determination of a system for obtaining informed consent that complies with the mandate of the LSSI.

According to these criteria, it is deemed appropriate to impose an initial sanction of €5,000 (five thousand euros) for the infringement of Article 22.2 of the LSSI, regarding the cookie policy implemented on its owned website.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

TO INITIATE: SANCTIONING PROCEDURE against the entity LA VANGUARDIA EDICIONES, S.L., with CIF: B61475257, owner of the website <https://www.lavanguardia.com> for the infringement of Article 22.2 of the LSSI, due to the deficiencies detected on its website regarding the "Cookie Policy."
TO APPOINT: as Instructor Mr. B.B.B., and Secretary, if applicable, Ms. C.C.C., indicating that either of them may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law

40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

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INCORPORATE: into the sanctioning file, for evidentiary purposes, the complaint filed and its documentation, the documents obtained and generated by the General Subdirectorate of Data Inspection during the investigation phase, all of which are part of this administrative file.

THAT: for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be 5,000 euros (five thousand euros), for the infringement of Article 22.2 of the LSSI, without prejudice to what results from the instruction of this file.

NOTIFY: this agreement to initiate the sanctioning file to the entity LA VANGUARDIA EDICIONES, granting it a hearing period of ten working days to submit allegations and present any evidence it deems appropriate. If no allegations are made within the stipulated period regarding this initiation agreement, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, in the event that the sanction to be imposed is a fine, it may acknowledge its responsibility within the period granted for the submission of allegations to this initiation agreement; this will entail a reduction of 20% of the sanction to be imposed in this procedure, equivalent in this case to 1,000 euros. With the application of this reduction, the sanction would be set at 4,000 euros, resolving the procedure with the imposition of this sanction. Similarly, it may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will imply a reduction of 20% of the amount of this sanction, equivalent in this case to 1,000 euros. With the application of this reduction, the sanction would be set at 4,000 euros, and its payment will imply the termination of the procedure.

The reduction for voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted for submitting allegations to the initiation of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at 3,000 euros (three thousand euros).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction.

If it is decided to proceed with the voluntary payment of any of the amounts indicated above, it must be made effective by depositing it into account No. ES00 0000 0000 0000 0000 0000 opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is entitled.

Furthermore, the proof of payment must be sent to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement or, where appropriate, from the draft initiation agreement. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

Mar España Martí

Director of the Spanish Agency for Data Protection.

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SECOND: On July 3, 2023, the respondent has proceeded to pay the sanction in the amount of 4,000

euros, making use of one of the two reductions provided in the previously transcribed Initiation Agreement. Therefore, the acknowledgment of responsibility has not been accredited.

THIRD: The payment made entails the waiver of any action or administrative appeal against the sanction, in relation to the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

I

Competence

In accordance with the provisions of Article 43.1 of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (hereinafter LSSI) and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions...

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in Regulation (EU) 2016/679, in this organic law, by the regulatory provisions issued in its development and, insofar as they do not contradict them, subsidiarily, by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the powers assigned to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions of Title VIII and its implementing rules shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the powers assigned to it by other laws."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of the initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202300489, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to LA VANGUARDIA EDICIONES, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative route as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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